LEASE AMENDMENT

Fairmont Data Center | Cincinnati, OH

Landlord	Fairmont Data Center Owner LLC
Tenant	Westbrook Compute Inc.
Premises	Suite 38380, Fairmont Data Center
Amendment Date	April 7, 2025
Amendment No.	5

1. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Data Center, 3983 Centennial Parkway, Cincinnati, OH 88497. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

2. Term. The term of this Lease shall be 12 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

3. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

4. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

5. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 21 months of Base Rent, to be held without interest. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

6. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

7. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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8. Alterations. Tenant shall not make any alterations costing more than $127,000 without Landlord's prior written consent, which shall not be unreasonably withheld. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

9. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

10. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

11. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

12. Renewal Option. Tenant shall have 36 option(s) to renew for 7 years each at the then-prevailing market rent upon at least nine months' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

13. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

14. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Data Center, 3983 Centennial Parkway, Cincinnati, OH 88497. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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15. Term. The term of this Lease shall be 8 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

16. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

17. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

18. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 19 months of Base Rent, to be held without interest. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

19. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

20. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Alterations. Tenant shall not make any alterations costing more than $222,000 without Landlord's prior written consent, which shall not be unreasonably withheld. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

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22. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

23. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

24. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Renewal Option. Tenant shall have 31 option(s) to renew for 10 years each at the then-prevailing market rent upon at least nine months' notice. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

26. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

27. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Data Center, 3983 Centennial Parkway, Cincinnati, OH 88497. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

28. Term. The term of this Lease shall be 5 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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29. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

30. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

31. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 7 months of Base Rent, to be held without interest. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

32. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

33. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

34. Alterations. Tenant shall not make any alterations costing more than $271,000 without Landlord's prior written consent, which shall not be unreasonably withheld. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

35. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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36. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

37. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

38. Renewal Option. Tenant shall have 8 option(s) to renew for 5 years each at the then-prevailing market rent upon at least nine months' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

39. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

40. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Data Center, 3983 Centennial Parkway, Cincinnati, OH 88497. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

41. Term. The term of this Lease shall be 8 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

42. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

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43. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

44. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 25 months of Base Rent, to be held without interest. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

45. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

46. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

47. Alterations. Tenant shall not make any alterations costing more than $418,000 without Landlord's prior written consent, which shall not be unreasonably withheld. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

48. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

49. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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50. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

51. Renewal Option. Tenant shall have 39 option(s) to renew for 5 years each at the then-prevailing market rent upon at least nine months' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

52. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

53. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Data Center, 3983 Centennial Parkway, Cincinnati, OH 88497. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

54. Term. The term of this Lease shall be 4 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

55. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

56. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

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57. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 36 months of Base Rent, to be held without interest. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

58. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

59. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

60. Alterations. Tenant shall not make any alterations costing more than $175,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

61. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

62. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

63. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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64. Renewal Option. Tenant shall have 48 option(s) to renew for 5 years each at the then-prevailing market rent upon at least nine months' notice. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

65. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

66. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Fairmont Data Center, 3983 Centennial Parkway, Cincinnati, OH 88497. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

67. Term. The term of this Lease shall be 9 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

68. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

69. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

70. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 18 months of Base Rent, to be held without interest. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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71. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

72. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

73. Alterations. Tenant shall not make any alterations costing more than $122,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

74. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

75. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

76. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

77. Renewal Option. Tenant shall have 3 option(s) to renew for 9 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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